# SUPREME COURT OF INDIA

**APPELLATE JURISDICTION · CONSTITUTION BENCH (7 JUDGES)**

## Civil Appeal No. 5041 of 2005

**CNR: SCIN010050412005**

*Date: 12 August, 2005*

*Citation: (2005) 6 SCC 537*

**CORAM:** Hon'ble R.C. Lahoti, C.J., Y.K. Sabharwal, D.M. Dharmadhikari, Arun Kumar,

**Petitioner: P.A. Inamdar & Others**

**- VERSUS -**

**Respondent: State of Maharashtra & Others**

**DOMAIN: EDUCATION LAW & STATE QUOTA PROHIBITION** **STATUS: Good Law (7-Judge Bench Landmark)**

### JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Neither the policy of reservation can be enforced by the State nor any quota or percentage of admissions can be carved out to be appropriated by the State in a minority or non-minority unaided educational institution.

**STATUTES APPLIED:** Article 19(1)(g), Article 30, Article 15(4)

### DISPOSITION: STATE RESERVATION IN PRIVATE UNAIDED COLLEGES BARRED

#### EXECUTIVE RATIO SUMMARY:

*Seven-judge Constitution Bench held that the State cannot impose its reservation policy on private unaided professional colleges, whether minority or non-minority.*

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